EASYPARK – GENERAL TERMS AND CONDITIONS FOR CONSUMERS

Effective as of 11 December 2024

1 Applicability

1.1 These general terms and conditions (the "**General Terms and Conditions**") apply when EasyPark SAS, a s*ociété par actions simplifiée* having its registered office located at 2, ter rue du Château 92200 Neuilly sur Seine registered with the commercial registry under number 513 560 359 ("**EasyPark**"), and holding office at 2 rue du Pont Colbert, 78000, Versailles, provides Services (as defined below) to natural persons (consumers) (the "**Customer**") in France.

1.2 All Services are provided in accordance with mandatory law and in accordance with:

- any individually agreed terms and conditions; and
- these General Terms and Conditions.

In case of deviation between the abovementioned provisions, they shall take precedent in the abovementioned order.

1.3 The Services are directed to natural persons above 18 years of age.

1.4 Section 17 includes special provisions governing the use of EasyPark services abroad.

1.5 By registering with EasyPark (see section 3.2), the Customer agrees with and accepts to be bound by these General Terms and Conditions, by which a binding agreement of successive performance, i.e. an agreement which obligations of the parties are performed in several services spread over time (the "**Agreement**") arises. These General Terms and Conditions form part of the Agreement between EasyPark and the Customer.

1.6 If the Customer also has a business user account with EasyPark, EasyPark's from time to time applicable general terms and conditions for business customers apply in applicable parts to the Customer's business related use of any services provided by EasyPark.

1.7 If the Customer has authorised, permitted or otherwise made the Customer's EasyPark account available for someone else to use, the Customer bears full responsibility under the Agreement for such use (including, for the avoidance of doubt, the obligation to pay any accrued fees).

2 Definitions

2.1 In these General Terms and Conditions, and in connection with the Services, defined terms and expressions shall have the meaning set forth below:

"**App**" means EasyPark's Mobile phone application;

"**CameraPark**" shall have the meaning set forth in section 4.1.2;

"**Car App**" means EasyPark's application to be used in the infotainment system of certain types of vehicles;

"**Charging Cost**" means the price payable by the Customer in relation to a Charging Session, corresponding to and being calculated based on the length of the relevant Charging Session multiplied with the charging price applied by the relevant P-operator or Partner in relation to the relevant Charging Station from time to time, which factors EasyPark does not have control over, and

which may change from time to time – however the Charging Cost does not include any EasyPark service fee that may be applicable in accordance with section 9 below;

"**Charging Service**" shall have the meaning set forth in section 3.1.1;

"**Charging Session**" means a single, continuous charging session ordered by the Customer using the EasyPark System, during which the Customer's vehicle is charged at the relevant Charging Station;

"**EasyPark Card**" means the pass, which EasyPark may provide to the Customer, and which is applicable in relation to certain Parking Lots, provided that the relevant P-operator accepts such passes;

"**EasyPark System**" shall have the meaning set forth in section 3.1.1, *i.e.*, EasyPark's electronic system for modern parking and related services, which the Customer gains access to via the SMS Service, the App, the Car App and/or the Website;

"**Licence Plate Number**" means the official registration number or personal licence plate number, as the case may be, of a vehicle, as set forth on the licence plates that are mounted to the vehicle;

"**Mobile phone**" means a mobile phone or a tablet;

"Parking Fee" shall have the meaning set forth in section 4.1.6;

"**Parking Guidance Service**" shall have the meaning set forth in section 3.1.1;

"**Parking Lot**" shall have the meaning set forth in section 4.2.1;

"**Parking Service**" shall have the meaning set forth in section 3.1.1;

"**Partner City**" shall have the meaning set forth in section 8.4.2;

"**Party**" and "**Parties**" means EasyPark and/or the Customer;

"**Partner**" means any partner, which EasyPark co-operates with (however, excluding P-operators);

"**P-operator**" means any parking operator, which EasyPark co-operates with;

"**Service/-s**" shall have the meaning set forth in section 3.1.1;

"**SMS Service**" means EasyPark's SMS service; and

"**Website**" means EasyPark's website www.easypark.fr.

2.2 Definitions may also be found elsewhere in these General Terms and Conditions.

3 General terms and conditions for the Services

3.1 General

3.1.1 EasyPark provides an electronic system for modern parking (the "**EasyPark System**"), through which EasyPark, in co-operation with P-operators and other Partners, enables Customers to administrate parking of vehicles (the "**Parking Service**") and to access additional related services that may be made available depending on where the Customer chooses to park (each an "**Additional Service**"), such as charging of electric vehicles (the "**Charging Service**"), receiving parking guidance (the "**Parking Guidance Service**") and other functions. The Parking Service and the Additional Services, as well as other services provided by EasyPark to the Customer from time to time and depending on where the Customer chooses to park are jointly referred to as the "**Services**". For the avoidance of doubt, EasyPark does not provide any parking locations, parking spaces, paid parking, or facilities for charging of electrical vehicles as such.

3.1.2 The Services offered by EasyPark are often dependent upon, or provided in combination with, services offered by P-operators and Partners. Such third parties may have their own applicable rules, regulations and/or terms of service. In order to use the Services, the Customer may be required to adhere to the P-operators or Partners' terms and conditions, which would be communicated by the P-operators or Partners from time to time. EasyPark is not responsible nor liable for the services offered by P-operators and Partners. Please contact the P-operator or Partner to receive information in this regard.

3.1.3 Some Services may be offered simultaneously and separate costs and fees for each Service may be applicable and charged. For a more detailed description of the Services, reference is made to the information provided on the Website and in the App/Car App from time to time.

3.1.4 Depending on where the Customer choses to park, EasyPark can offer a selection of product packages (each a "**Product Package**") including the Parking Service and Additional Services, if applicable, whose contents, information on prices and any special terms and conditions, are described on the Website and in the App/Car App from time to time. Prices due are displayed in the App/Car App.

3.1.5 The App is accessible free of charge from the application download platforms of the iOS and Android application systems to any user with Internet access. This download is subject to the licenses and/or conditions of use of the platform and mobile device, including any software or hardware updates required for said download. All costs incurred by the user's mobile network provider remain at the user's expense. Downloading the App is a prerequisite to access the Services.

3.1.6 The Car App is accessible free of charge from the Android Automotive OS (AAOS) and Apple Carplay application download platforms to any user with Internet access. This download is subject to the licenses and/or terms of use of the platform and the vehicle manufacturer, including any software or hardware updates required for said download. All costs incurred by the user's mobile network provider remain at the user's expense.

3.2 Access to the Services, registration data, etc.

3.2.1 A pre-condition for the Customer to gain access to the Services is that the Customer registers as a user with EasyPark. EasyPark reserves the right to reject a registration.

3.2.2 The EasyPark account provides an overview of the account balance, transaction history, purchased active and historical products and registered vehicles. EasyPark provides information regarding parkings and Charging Sessions made on the Customer's My Pages, and such information is generally stored in accordance with EasyPark's privacy policy: https://legals.easyparksystem.net/FR/privacy/en/privacy_fr_en.pdf.

3.2.3 Registration can be made via the Website, the App, telephone, SMS, or in such other ways as accepted by EasyPark from time to time. In connection with the registration, the Customer shall provide requested information, such as, where applicable, further specified personal data, valid mobile phone number, email address, and the Licence Plate Number for at least one vehicle. Furthermore, the Customer shall select a payment method accepted by EasyPark, and register a payment card, or, as applicable, provide other information relevant for the selected payment method.

3.2.4 When the registration has been completed, the Customer is granted a non-exclusive and non-transferable right, which is limited in time and not sub-licensable, to use the EasyPark System, the Services and – if applicable – the App and the Car App, subject to the selected Product Package (which may depend on where the Customer is located) and the Agreement. The right to use the EasyPark System and, if applicable, the App and the Car App, remains during the term of the Agreement and for as long as the Customer has an active user account and discharges its duties under the Agreement (including these General Terms and Conditions).

3.2.5 When a registration has been completed, the Customer chooses a unique password to be used together with the Customer's telephone number and/or email (if applicable) and receives a verification code to log on to the App (together, the "**Login Credentials**"). The Login Credentials also enable the Customer to log on to the Customer's personal website on the Website ("**My Pages**").

3.2.6 Certain Services offered through the App or the Car App require that the Customer has enabled the function "allow location access" and/or "allow notifications" on its Mobile phone, vehicle or other technical solutions approved by EasyPark from time to time.

3.2.7 The Client has the right to register on the list to oppose to cold calling (information available at https://www.bloctel.gouv.fr/).

3.3 The Customer's undertakings and responsibility

3.3.1 The Customer is responsible for procuring that accurate information regarding the Customer and relevant vehicles is registered with EasyPark at any time. Following registration, the Customer shall log on to its My Pages or check the settings in the App or the Car App, as applicable, to verify that the registered information is accurate. EasyPark is not liable for erroneous registered information, regardless of registration method.

3.3.2 The Customer is responsible for ensuring that the payment card registered through EasyPark, or any other selected payment method, as applicable, is valid, not blocked and that the associated account, if any, has sufficient balance/spending limit. The Customer shall provide EasyPark with relevant information (*e.g.*, through update in the App or on My Pages, or by notifying EasyPark's customer service) regarding a new payment card at the latest by the end of the calendar month preceding the calendar month when the registered payment card expires.

3.3.3 The Customer is responsible for procuring that the Login Credentials are kept and used in a safe manner, and not disclosed or otherwise made available to any unauthorised person.

3.3.4 The Customer shall without delay inform EasyPark, as instructed from time to time on the Website (*e.g.*, through update in the App or on My Pages, or by notifying EasyPark's customer service), if:

- the Customer has any reason to believe that an unauthorised person has gained access to or knowledge of the Login Credentials;
- the Customer's EasyPark Card has been lost or stolen;
- any registered information regarding the Customer has been changed or should be updated, for example if the Customer is no longer using the mobile phone number registered with EasyPark;

- the Customer has any reason to believe that the Licence Plate Number of a vehicle registered for use of Automatic CameraPark (as defined below) is misused;
- a Mobile phone, on which the Customer has installed the App, or a vehicle in which the Customer has installed the Car App, is lost or stolen; or
- a registered vehicle has been sold, temporarily deregistered, or otherwise will not be used in relation to the Services,

in order for EasyPark to take appropriate measures, such as blocking the Login Credentials, the EasyPark Card, the Licence Plate Number and/or the Customer's user account or update the Customer's registered information.

The Customer shall also keep EasyPark notified of any other circumstances of importance to the Agreement and/or the provision of the Services.

3.3.5 EasyPark may, when necessary, provide the Customer with further information regarding the operation of the Services from time to time.

3.3.6 The Customer is responsible for procuring, where applicable, that the (a) telephone, (b) Mobile phone, or (c) other technical equipment (*e.g.*, a vehicle's infotainment system) used by the Customer in relation to the Services functions properly and is compatible at all times with (i) the EasyPark System, (ii) the Services, (iii) the App, and (iv) the Car App, as applicable. The Customer is also responsible for procuring that the App and the Car App are duly updated, if applicable.

The performance requirements applicable from time to time in relation to the EasyPark System, the Services, the App and the Car App, are available on the Website.

3.3.7 The Customer accepts that invoices, as the case may be, and other financial documents are sent by email and/or provided through the Customer's My Pages.

4 Special terms and conditions for the Parking Service

4.1 General

4.1.1 Through the Parking Service, the Customer is able to notify the relevant P-operator of when a parking starts, the preliminary parking time and when a parking ends, and, if necessary, extend the parking time. However, due to rules established by a particular P-operator, the Customer may in relation to certain Parking Lots only be able to notify the P-operator of a fixed parking time, which cannot be prematurely ended or extended, or a minimum parking time.

4.1.2 In relation to certain Parking Lots, access may be granted and a parking may be started and/or ended with the help of a P-operator's automatic number plate recognition system (the "**CameraPark System**"), whereby the time a vehicle enters and leaves a Parking Lot is automatically registered and, if applicable, forwarded to the EasyPark System ("**CameraPark**"). If the CameraPark System is fully automated ("**Automatic CameraPark**"), a parking is activated automatically in the EasyPark System when the relevant vehicle enters the Parking Lot, whereby the Customer receives a notification in the App, and is ended automatically in the EasyPark System when the vehicle leaves the Parking Lot. If the CameraPark System is not fully automated, the Customer must activate a parking manually in the EasyPark System (*e.g.*, through the App), whereby the start time automatically will be set to the time

when the relevant vehicle entered the relevant Parking Lot, but the parking is ended automatically in the EasyPark System, when the vehicle leaves the Parking Lot. The Customer is responsible for checking whether Automatic CameraPark is available for a given Parking Lot. Areas with Automatic CameraPark are marked with a symbol in the App.

4.1.3 The CameraPark Systems are provided and maintained by the P-operators and not by EasyPark. EasyPark does not provide any technical support in relation to the CameraPark System; instead the Customer is referred to the relevant P-operator.

4.1.4 By activating and using CameraPark the Customer:

- confirms that it is an authorised user of the vehicle for which CameraPark is activated;
- understands that it is obliged to disable the license plate number for CameraPark if it is no longer an authorised user of the related vehicle;
- understands that adding a license plate number to its account for CameraPark is at the Customer's own risk and account;
- understands that the total costs for a parking session, also including the applicable EasyPark service fees, will be calculated when the relevant vehicle exits the Parking Lot and will be automatically debited using the payment method the Customer have chosen;
- understand that allowing push notifications in the App is not obligatory but it can help to keep the Customer informed about ongoing parking sessions and/or when one of the vehicles in the Customer's account is enabled or disabled for Automatic CameraPark;
- understand that only Parking Lots with a "camera symbol" in the App support Automatic CameraPark;
- understands that Parking Lots that use CameraPark may be added or removed without notice.

4.1.5 The Parking Service may among other things be used for residential/permit parking, provided that the relevant P-operator accepts this. When using the Parking Service for residential/permit parking, the Customer needs a residential/parking permit provided by the Customer's municipality. The Customer is responsible for procuring that it holds a relevant residential/parking permit. When using the Parking Service for residential/permit parking, the Customer can only notify the P-operator of a fixed parking time, which cannot be prematurely ended.

4.1.6 When providing the Parking Service, EasyPark will either:

(a) collect the relevant parking fee (including VAT), which is determined on the basis of the P-operator's current tariff, which factors EasyPark does not have control over, and which may change from time to time (the "**Parking Fee**") from the Customer and transfer it to the relevant P-operator; or

(b) resell dematerialised parking tickets to the Customer, which EasyPark has purchased from the relevant P-operator, whereby the value of the parking ticket sold by EasyPark to the Customer corresponds to the applicable Parking Fee.

4.1.7 The application of either alternative mentioned above depends on the relevant P-operator, and does not affect the way the Parking Service is provided to Customer.

4.1.8 In connection with the Parking Service, EasyPark may offer certain Additional Services and functions (some at an additional cost depending on the Product Package). For example, the Customer may choose to receive a reminder from EasyPark (*e.g.*, via SMS) at a certain time before a preliminary set or fixed parking time ends, if this Additional Service is available at the place where the Customer is parking. The Customer is always responsible for ending or extending a parking session that has been started via the Parking Service.

4.2 Terms of use

4.2.1 The Parking Service can only be used at parking lots and within parking areas/zones (each a "**Parking Lot**"), which:

(i) at any given time are (a) specified in the list "*EasyPark works here*", which is available on the Website, or (b) indicated in the App's or the Car App's map interface; and/or

(ii) have parking meters with EasyPark stickers, or otherwise have signs or other EasyPark distinctive marks, which indicate that EasyPark co-operates with the P-operator in relation to the relevant Parking Lot.

4.2.2 To be able to use the Automatic CameraPark service in relation to a particular vehicle, the Customer must activate the Automatic CameraPark service for such vehicle, via the App or My Pages, and register the vehicle's Licence Plate Number. The Customer is responsible for specifying the correct Licence Plate Number. If the Customer also has a business user account with EasyPark, it must select which account any Automatic CameraPark parking shall be registered to before entering the gate.

4.2.3 The Customer can start a parking session through the Parking Service by activation via either:

- the App;
- the Car App;
- the SMS Service;
- the CameraPark System, provided that the relevant P-operator supports Automatic CameraPark; or
- the EasyPark Card, provided that the relevant P-operator accepts the EasyPark Card.

In order to make sure that the parking has started correctly, the Customer shall check that a confirmation of the started parking has been received via:

- the App, when using the App;
- the Car App, when using the Car App;
- SMS, when using the SMS Service;
- the App, when using CameraPark; or
- registration of the EasyPark Card in a correct manner, when using such card.

4.2.4 If the Customer starts a parking session through the Parking Service, the Customer shall specify the parked vehicle's Licence Plate Number and the relevant Parking Lot, unless an EasyPark Card or Automatic CameraPark is used. If the Customer uses the App's or the Car App's positioning function or CameraPark, the Customer shall ascertain that the proposed Parking Lot is in fact the Parking Lot, on which the Customer has parked. The Customer is responsible for specifying the correct Parking

Lot and Licence Plate Number, irrespective of whether such information has been proposed through the App's or the Car App's positioning function or through the use of Automatic CameraPark. EasyPark assumes no liability if the wrong Parking Lot or Licence Plate Number has been specified (see section 11.3(a)).

4.2.5 When using the Parking Service for residential or permit parking, if the P-operator so requires, the Customer shall have a residential/parking permit attached to the front window of the parked vehicle. Please contact the P-operator to receive information on whether a visible residential/parking permit is required.

4.3 The Customer's undertakings and responsibility

4.3.1 The Customer shall always comply with applicable laws and regulations, and the rules established by the relevant P-operator at any given time, or which are otherwise applicable in relation to the Parking Lot where a Customer parks the vehicle.

4.3.2 The Customer is responsible for starting the parking session correctly, and ascertaining that the specified Parking Lot and Licence Plate Number are correct, as set forth in Section 4.2.4.

4.3.3 The Customer is responsible for procuring that a started parking session is ended or extended, as the case may be. If the Customer did not state a preliminary end time or a total parking time when the parking was started, the Customer is responsible for ending the parking manually. If the Customer is using CameraPark, it shall check that a started parking has ended when the relevant vehicle leaves the relevant Parking Lot, and notify EasyPark's customer service, if it has not ended automatically.

4.3.4 If the Customer is using CameraPark, the Customer is responsible for procuring that the relevant vehicle's number plates are clean, not damaged and otherwise in a readable condition when the vehicle enters and leaves the Parking Lot.

4.3.5 If the Parking Service is not available or is out of function, for example due to reasons attributable to the (i) telephone, (ii) Mobile phone or (iii) other technical equipment (e.g., a vehicle's infotainment system) used by the Customer, or failure, disruption or delay in telephone, Internet, or other communication network, or a CameraPark System, the Customer is responsible for making proper payment for the relevant parking session to the P-operator in any other way instructed by the P-operator (*e.g.*, by payment in relevant parking meter). If the Customer in such a case does not make payment in any such other way, the Customer risks to be issued a parking fine, or a fee or a charge for incorrect parking.

4.3.6 The Customer is responsible for deactivating the Automatic CameraPark service in relation to a vehicle, if the Customer no longer wants to use such service in relation to such vehicle (*e.g.*, if the vehicle has been sold, or, in respect of lease and rental cars, when the relevant rental or lease period has ended), or no longer wants to use the service for an individual parking (e.g. if the Customer has lent the vehicle to a third party). If the Customer is unable to deactivate Automatic CameraPark, the Customer is responsible for either making EasyPark duly aware of this or refraining from using areas with Automatic CameraPark. Failure to deactivate Automatic CameraPark does not relieve the Customer of its payment obligations under this Agreement.

4.3.7 The Customer is responsible for any parking fines and fees or charges for incorrect parking (which may be notified or collected in connection with parking violations), and the payment thereof. Any parking violation is a matter between the Customer and the relevant P-operator or the police authority. EasyPark remains neutral in such disputes. However, EasyPark may at its sole discretion provide information to the disputing parties.

5 Special terms and conditions for the Charging Service

5.1 General

5.1.1 EasyPark may, depending on where the Customer is located, offer a Charging Service. Through the Charging Service, the Customer is able to notify any relevant Partner or P-operator, or EasyPark (when EasyPark acts as a reseller), as applicable, (a) when a Charging Session is started or ended, (b) of the preliminary charging time/level, and (c), if necessary, of an extension/increase of the charging time/level.

5.1.2 The terms and conditions for the Parking Service set forth in section 4, apply *mutatis mutandis* to the Charging Service. However, started and ended parking shall, respectively, mean started and ended Charging Session. No resident parking and no system corresponding to CameraPark exist in relation to the Charging Service.

5.1.3 In relation to certain P-operators and Partners, the Charging Service includes an element of immediate on-demand purchase and re-sale of electricity or charging time, as the case may be, whereby EasyPark acts as a reseller. When a Customer is charging an electric vehicle and starts a Charging Session, from such time and until the Charging Session has ended; EasyPark will i) buy relevant electricity or charging time from the relevant P-operator or Partner, and 2) re-sell the relevant electricity or charging time to the Customer.

5.1.4 If EasyPark does not function as a reseller, EasyPark will collect the relevant Charging Cost, in connection with the Customer completing a started charging via the Charging Service (see section 8).

5.1.5 Charging stations are provided and maintained by Partners and/or P-operators, and not by EasyPark. EasyPark assumes no responsibility for the charging station used by the Customer in connection with the Charging Service (the "**Charging Station**"), and does not provide any technical support in relation to the Charging Station. EasyPark also assumes no responsibility for the electricity consumed, unless EasyPark acts as a reseller. If a Charging Station does not function properly or, *e.g.*, has caused damage to the Customer's vehicle, the Customer is referred to the relevant Partner or P-operator. Normally, contact details are provided in connection with the Charging Station, but may also be retrieved from EasyPark's customer service.

5.2 The Customer's undertakings and responsibility

5.2.1 The Customer shall always comply with applicable laws and regulations, and the rules established by each relevant Partner or P-operator at any given time, or which are otherwise applicable in relation to the Customer's charging of the vehicle.

5.2.2 If the Charging Service is not available or is out of function for example due to reasons attributable to the (i) telephone, (ii) Mobile phone or (iii) other technical equipment (e.g. a vehicle's infotainment system) used by the Customer, or failure, disruption or delay in the telephone, Internet, or other communication network, the Customer is responsible for making proper payment for the relevant Charging Session to the relevant Partner or P-operator in any other way instructed by such Partner or P-operator.

5.2.3 The Customer is responsible for any damage caused by the Customer, the Customer's vehicle or other property pertaining to the Customer, in connection with the charging of the Customer's vehicle, unless otherwise is provided in section 11.

6 Special terms and conditions for the Parking Guidance Service

6.1 EasyPark may, depending on where the Customer is located, offer a Parking Guidance Service. Through the Parking Guidance Service, the Customer may receive proposals regarding available Parking Lots and/or Charging Stations close to the Customer, through the App's positioning function or other technical solution approved by EasyPark from time to time, which is compatible with the Parking Guidance Service.

6.2 The Parking Guidance Service requires that the Customer uses the App or the Car App, as the case may be, and has enabled the functions "allow location access" and/or "allow push notifications" on its Mobile phone or other technical solutions approved by EasyPark from time to time.

6.3 EasyPark does not guarantee that the Parking Lots/Charging Stations as proposed by the Parking Guidance Service are actually available, nor that the Parking Guidance Service shall always accurately guide the Customer to such Parking Lot/Charging Station.

7 Notification of assignments of claims, etc.

7.1 The Customer is hereby notified that EasyPark, as applicable, may acquire

- the relevant P-operator's claim on the Customer for the payment of the relevant Parking Fee, immediately after the Customer ends a parking, which was started via the Parking Service, or alternatively, starts a fixed parking time via the Parking Service; and/or
- the relevant Partner's or P-operator's claim on the Customer for payment of the relevant Charging Fee, immediately after the Customer ends a Charging Session .

7.2 The Customer is hereby notified that the Customer shall make payment for any assigned claim to EasyPark (and not to the relevant Partner and/or P-operator).

7.3 In the event EasyPark has acquired the relevant Partner's or P-operator's claim(s) on the Customer for the payment of the relevant Parking Fee and/or Charging Fee, the Customer will be notified via My Pages, the App, the Car App, email and/or SMS that EasyPark has acquired such claim from the relevant Partner and/or P-operator.

7.4 The Customer is notified via My Pages, the App/Car App, e-mail, the receipt and/or SMS that a claim regarding payment of a Parking Fee and/or Charging Fee has arisen and that EasyPark has acquired such claim from the relevant Partner and/or P-operator.

7.5 Where EasyPark instead collects the payment of the Parking Fee or Charging Fee on behalf of the relevant P-operator or Partner (and thus not acquiring any claim), EasyPark will operate as a payment services provider and will collect the relevant amount from the Customer and transfer it to the relevant P-operator or Partner. Notwithstanding the above, EasyPark is exempted to comply with the provisions of Articles L.521-1 *et seq.* of the *Code monétaire et financier* on payment services providers given that the payment services that EasyPark provide fall under an exemption provided for in Article L.521-3, I, 2° of the *Code monétaire et financier*.

8 Prices and fees

8.1 Detailed information regarding pricing for the Services, Product Packages, Additional Services and other additional functions to which the Customer has access (depending, in particular, where it is located) can be found on the Website and in the App/Car App. All prices and fees include VAT. Parking Fees and Charging Costs (where applicable) are in addition to and not included in EasyPark's prices and fees.

8.2 EasyPark's pricing model is dependent upon the Product Package selected by the Customer (which primarily is driven by the Customer's parking requirements and of the availability of the Product Package depending on where the Customer chooses to park). The Product Packages offered by EasyPark in France are as follows:

- only a fixed monthly fee (*i.e.* a subscription model, if applicable) which covers the EasyPark service fee, irrespective of the number of parking or (if applicable) charging sessions ("EasyPark Go") (see below article 8.3.5)
- a fixed and/ or percentage surcharge to the relevant Parking Fee/Charging Costs (where applicable):fees are calculated and charged on a transaction by transaction basis ("Pay-per-use" offers: "Small", "Standard" and "Basic") (see below articles 8.3.1 to 8.3.4); or

No Additional Service is included in the (i) EasyPark Go and (ii) "Pay-per-use" offers. For further details on Additional Services see article 8.4 below.

8.3 Description of EasyPark's Offers

8.3.1 EasyPark "**Small**": When the Customer registers with EasyPark, it automatically benefits from the EasyPark "Small" package offer. This offer allows the Customer to pay for the Parking Service or Charging Service (where applicable) via the EasyPark App. EasyPark may apply a service charge, calculated on the basis of the parking or charging costs, which are shared with the Customer on the App before any Parking session or Charging session.

8.3.2 EasyPark "**Standard**": When parking or charging for the <u>first time</u> (if applicable) in a Partner City, the Customer will automatically benefit from the "Standard" offer, regardless of the city in which it wants to park.

8.3.3 EasyPark "**Basic**": In certain partner cities, EasyPark may offer the Customer a choice between its "Basic" offer and its "Standard" offer. The list of cities concerned is available on easypark.fr, in the tab Support / Payment Pricing / Pricing - Private (one or more "**Partner City(ies)**").

- the "Basic" offer allows the Customer to park and benefit from the App's functionalities, free of charge, only in the Partner City of their choice.
- the "Standard" offer allows the Customer to park and benefit from the App's functionalities, for a service fee, if applicable, in all the cities in which EasyPark provides its services (including the Partner City of the Customer's choice).

8.3.4 When parking or charging for the first time (if applicable) in a Partner City, the Customer will automatically benefit from the "Standard" offer, however without any service fee charged to the Customer. The second time the Customer is parking or charging (if applicable) in this Partner City, the Customer has to select either the "Standard" or "Basic" offer.

- if the Customer chooses the "Basic" offer, and as described in article 8.4.3 above, it will benefit from EasyPark's services only in the chosen Partner City, with no service fee. If the Customer wishes to park outside the chosen Partner City, a notification will appear in the App inviting the Customer to subscribe to the "Standard" offer. If the Customer chooses to subscribe to the "Standard" offer, this offer will apply regardless of where the Customer parks (including the next time the Customer visits the Partner City).
- if the Customer chooses the "Standard" offer, and as described in article 8.4.3 above, the Customer will benefit from all of the App's functionalities, subject to a service fee, where applicable, regardless of where the Customer parks (including the next time the Customer visits the Partner City).

The Customer may switch from a "Basic" offer to a "Standard" offer, or from a "Standard" offer to a "Basic" offer, at any time, free of charge, on their "My Pages" available on easypark.fr.

8.3.5 EasyPark "**Go**": Regardless of the Customer's "Pay-per-use" offer, the Customer can, at any time, choose to subscribe to EasyPark's "EasyPark Go" subscription offer. This offer is available in the App Menu. This offer enables the Customer to pay a fixed monthly fee (instead of fixed and/ or percentage surcharge to the relevant Parking Fees/Charging Costs (where applicable)). EasyPark can offer to the Customer a free trial period, for a duration provided for in the App Menu, before the Customer chooses to subscribe to EasyPark Go.

8.4 Additional Services

8.4.1 For Additional Services (such as the Parking Guidance Service) or other additional notifications and functions not included in EasyPark's Product Packages, separate fees may be charged to the Customer. These separate fees apply provided that such Additional Services are available where the Customer parks.

8.5 Change in prices

8.5.1 EasyPark reserves the right to change its prices and fees.

8.5.2 For EasyPark's "Pay-per-use" offers (see 8.3.1 to 8.3.4 above), such amendments become effective immediately for all future transactions, i.e. the amended prices or fees apply at the point in time at which the Customer requests a Service and accordingly such prices and fees may change at any time without notice. The prices and fees applicable at the relevant point in time are shown in the App/Car App when the Customer requests a Service and before the Customer bindingly books a Service.

8.5.3 For EasyPark's EasyPark Go offer (see 8.3.5 above), such amendments will become effective no earlier than 30 days after the Customer has been informed of the change, without prejudice of the Customer's right to terminate the Agreement, as per section 13.2 below.

9 Payment terms, etc.

9.1 Payment is made either by charging the Customer's registered payment card, or by any other payment method approved by EasyPark from time to time. The Customer selects and approves of the payment method in connection with its application for registration. For information regarding additional payment terms applicable to each respective payment method, reference is made to the relevant payment service provider.

9.2 The monthly subscription fee, if applicable in accordance with the Product Package selected by the Customer (provided that it is available where the Customer is parking), is charged monthly in advance and is not refundable. Other prices and fees (except for what is set forth in section 9.3) are charged in accordance with the payment method selected by the Customer after the starting or ending of the relevant Service. The Customer hereby approves such charging.

9.3 Parking Costs and Charging Costs (and EasyPark's fixed and/ or percentage surcharge to the relevant Parking Fees/Charging Costs (where applicable), if applicable in accordance with the Product Package selected by the Customer) are charged as soon as (i) the relevant claim regarding the Parking Cost and/or the Charging Cost has become due and payable, or (ii), if EasyPark acts as a reseller in relation to the Parking Service or the Charging Service, as the case may be, after the relevant parking or Charging Session, as relevant, having been ended.

9.4 In case the Customer is in default with a payment, EasyPark may request payment of any expense that EasyPark has borne which arise in connection with the claims which have not been paid when due and payable, provided that EasyPark provides the Customer with underlying justification for any such expenses.

10 The availability of the EasyPark System, intellectual property rights, etc.

10.1 The EasyPark System and Services are under continuous development and may be updated or changed from time to time or discontinued.

10.2 The EasyPark System is generally available 24 hours a day, but the availability may be interrupted due to planned upgrades, modifications and maintenance or due to unexpected system failures. The Customer acknowledges that software can never be tested in all possible situations and that deviation from agreed functionality and unexpected errors and disruptions may occur. EasyPark reserves the

right to update the EasyPark System with new functions or otherwise modify it in order to, for example, adapt it to new technology, new security standards or new administrative procedures.

10.3 All copyright (including the right to computer programs, data bases, source codes, object codes and algorithms) and other intellectual property rights (including trademarks and patent rights) relating to the EasyPark System and its contents are owned or licensed by EasyPark or its suppliers and partners. No such rights are transferred to the Customer by the virtue of this Agreement. It is not allowed to use, or to grant others a right to use, the EasyPark System or its contents for commercial purposes. The Customer does not have any right to copy, distribute, sell, publish, transfer, lend, sub-license, modify, or otherwise dispose of or take any action regarding the software included in the EasyPark System. The Customer does not have any right to engage in reverse engineering, decompilation, disassembling or in any way attempt to access the software's source code. In addition to the Customer's right to information pursuant to Section 3.2, the Customer has no right to by itself or through others collect and store data from the App, the Car App and the Website, provided that it does not limit the Customer's rights with respect to the applicable regulation on data protection, in particular the Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR).

10.4 The Customer shall ensure that all information and materials, which are transferred to the EasyPark System are free from damaging elements or source code or malware (such as viruses, worms and Trojan horses). It is the responsibility of the Customer that any information, which the Customer uploads to My Pages or makes available via the App or the Car App, does not infringe any third party's intellectual property or other rights and is not in conflict with any applicable law or regulation.

11 EasyPark's liability

11.1 Nothing in these General Terms and Conditions shall exclude liability of EasyPark for gross negligence and wilful misconduct, or death and personal injury caused by EasyPark's negligence, or any other type of liability which cannot be excluded or limited under applicable law.

11.2 EasyPark is not liable for:

(a) loss or damage to the Customer's vehicle or other properties while using any Parking Lots or Charging Stations;

(b) the services offered by P-operators or Partners; or

(c) indirect, special or consequential damages such as, e.g., loss of profits or for any damages in relation to the Customer's relationships with any third party.

11.3 Further, EasyPark is not liable for any damage or loss incurred by the Customer caused by:

(a) the Customer's fault or negligence, including that the Customer has (i) not correctly started or ended a Service (irrespective of whether the Customer has selected to receive a reminder from EasyPark or used CameraPark), (ii) not heeded information provided, or (iii) specified the wrong Parking Lot or Licence Plate Number when starting a parking (irrespective of whether such information has been stated manually or after a proposal made by

the positioning function in the App or the Car App or through the use of Automatic CameraPark);

(b) the Customer not having discharged its duties under the Agreement or otherwise not complied with EasyPark's instructions;

(c) the Customer having parked its vehicle in violation of applicable laws, regulations, and/or rules established by the relevant parking operator, or which are otherwise applicable in relation to the Parking Lot where the Customer parks the vehicle;

(d) error or insufficient functionality (such as the equipment being switched off or having a discharged or dead battery) relating to the Customer's (i) telephone, (ii) Mobile phone or (iii) other technical equipment (e.g., a vehicle's infotainment system), which may result in a parking or a Charging Session not being started or extended (whereby the Customer risks, e.g., a parking fine) or being ended correctly (whereby the Customer risks, e.g., to pay too much for its parking or charging);

(e) failure, disruption or delay in telephone, Internet, or other communication network provided by a party other than EasyPark, or any telecommunication operator's actions or omissions affecting the Services' functionality or its availability, which, e.g., may result in the Customer's phone, Mobile phone or other technical equipment not being able to communicate with the EasyPark System and a parking or a Charging Session not being started or extended (whereby the Customer risks, *e.g.*, a parking fine) or being ended correctly (whereby the Customer risks, *e.g.*, to pay too much for its parking or charging);

(f) the Service having been cancelled by EasyPark due to reasons that prove to be incorrect, but which EasyPark had reason to believe were correct at the time of the cancellation, and which justified the cancellation;

(g) a Charging Station not functioning correctly;

(h) a Parking Lot/Charging Station proposed by EasyPark not being available when the Customer arrives there;

(i) the Customer's EasyPark Card having been lost or stolen without the Customer informing EasyPark thereof, or otherwise been subject to unauthorised use;

(j) the Customer not having informed EasyPark of a known or suspected misuse of the Licence Plate Number of a vehicle registered for use of Automatic CameraPark;

(k) a Mobile phone, on which the Customer has installed the App, or a vehicle, in which the Customer has installed the Car App, being lost or stolen and the Customer not having duly informed EasyPark about this;

(l) the Customer not having duly deactivated the Automatic CameraPark service in relation to a vehicle;

(m) unauthorised use of the Login Credentials and/or the Services, or

(n) Force majeure (see section 15).

12 Complaints

12.1 In case of a defective Service or an erroneous charge or fee, the Customer shall submit a written complaint to EasyPark's customer service, whose contact data are provided in Article 21 below, without delay, and at the latest within 60 days from when the relevant Service started to be provided, alternatively from when the Customer became, or should have become, aware of the relevant erroneous charge. The complaint shall clearly specify the nature of the defect or error. The Customer shall provide reasonable assistance to EasyPark in connection with any investigation made due to the complaint.

12.2 Complaints regarding erroneous Parking Costs or Charging Costs are handled and decided upon in dialogue with the relevant P-operator or Partner. If and when such a complaint is approved, EasyPark shall without delay credit the Customer with the relevant amount. If the complaint is rejected, EasyPark shall notify the Customer of the outcome of the handling of the complaint and motivate the decision. Complaints related to a CameraPark System will be referred to the relevant P-operator.

12.3 EasyPark may at any time, whether prior to or after the Customer has been credited by EasyPark for any fees or other charges pursuant to section 12.2 or otherwise, require the Customer to object to any corresponding claim of a P-operator, Partner or other third party, as the case may be, as part of the Customer's reasonable assistance and cooperation. In addition, pursuant to EasyPark's written request, the Customer shall procure that EasyPark is allowed to handle any negotiation or dispute with any third party in relation to a dispute or potential dispute in respect of such fees or charges claimed from or credited by EasyPark. This includes granting EasyPark all authorisations and all assistance reasonably required to enable EasyPark to defend, at its own cost, against such claim or potential claim and to agree to any settlement or otherwise compromise or discharge such claim.

13 Term, early termination, etc.

13.1 General

13.1.1 The Agreement is valid from registration by the Customer (see section 1.5) for an indefinite period until it is terminated in accordance with the terms of the Agreement, or as otherwise agreed in writing.

13.1.2 Termination of the Agreement by the Customer shall be made via the App. The Customer can also terminate the Agreement in writing by contacting the Customer service whose contact details are provided in section 21 below.

13.1.3 Termination of the Agreement (for whatever reason) shall not affect any rights and/or obligations incurred by a Party prior to the date the Agreement is terminated.

13.2 Termination by the Customer

13.2.1 If the Customer has selected a Product Package without a monthly subscription fee ("Pay-per-use" offers), the Customer may terminate the Agreement with immediate effect.

13.2.2 If the Customer has selected a Product Package with a monthly subscription fee (in full or in part) (EasyPar Go offer), the Customer can unsubscribe to this Product Package at any time, and this unsubscription will be effective at the end of the month during which the Customer unsubscribed.

Monthly subscription fees will be due until the effective date of unsubscription. It is the Customer's responsibility to terminate the Agreement if its registered vehicle has been sold, is temporarily deregistered, or otherwise will not be used. EasyPark has no responsibility to verify that a vehicle having been registered by the Customer has not been temporarily deregistered.

13.2.3 If the Customer benefited from a trial period (as provided for in article 8.3.5 above), the Customer can unsubscribe from the Product Package at any time during the trial period, and this unsubscription will be effective with immediate effect. No monthly subscription fee will be due for the duration of the trial period.

13.2.4 From the moment the Customer unsubscribes from EasyPark Go, the Customer will benefit again from a "Pay-per-use" offer. The Customer can choose to terminate the Agreement, as per article 13.2.1 above.

13.2.5 Without prejudice to the termination right of the Customer under section 13.2, in case of a change of prices and fees in application of section 8.5 or of any amendment of the Agreement in application of section 18.1, the Customer is entitled to terminate the Agreement with effect as of the time the abovementioned changes become effective.

13.3 Termination by EasyPark

13.3.1 EasyPark has the right to immediately suspend the Customer's access to the Services, cancel the Customer's user account and/or terminate the Agreement with immediate effect if

(a) the Customer is in material breach of any of its undertakings under the Agreement;
(b) the Customer does not fulfil its payment obligations in relation to EasyPark, or does not have a valid payment card or any other payment method registered through EasyPark;
(c) the Customer becomes insolvent;
(d) the Customer uses the EasyPark System or any Service in violation of the Agreement, or in a way which may be detrimental or cause damage to EasyPark or any third party;
(e) the Customer has repeatedly parked its vehicle in violation of applicable laws, regulations, and/or rules established by any relevant P-operator;
(f) the Customer has provided incorrect, incomplete or misleading information, or
(g) EasyPark, based on an overall assessment, considers it likely that the Customer may be involved in, or linked to, criminal activity.

13.4 EasyPark may also stop providing the Services, as a whole or in parts.

13.5 The termination of the Agreement will be effective at the end of the month following the month during which EasyPark terminated the Agreement.

14 Right of withdrawal

14.1 In accordance with Article L. 221-18 of the French Consumer Code, the Customer has the right to freely withdraw from the present Agreement within fourteen calendar days from the day on which the Agreement is concluded, without the need to state any reason.

14.2 The day on which the Agreement is concluded is not included in this period. The period begins at the start of the first hour of the first day and ends at the end of the last hour of the last day of the period.

If this period expires on a Saturday, Sunday or public holiday, it is extended until the next working day.

14.3 In order to exercise the right to freely cancel the Agreement, the Customer must inform EasyPark SAS, who may be reached at Customer Service, EasyPark SAS, 2, ter rue du Château 92200 Neuilly sur Seine or via email at serviceclient@easypark.net, of its decision to withdraw from the Agreement by means of an unmistakeable statement (e.g. by letter sent by mail or email). You may use the cancelling form template included herein as **Schedule I**, although it is not mandatory provided that your will to cancel the Agreement is clearly expressed.

14.4 To meet the cancellation deadline, it is sufficient for the Customer to send its communication concerning the exercise of the right of cancellation before the cancellation period has expired.

14.5 In case the Customer withdraws from the Agreement, the Customer will be reimbursed of all payments carried out without undue delay and, in any case, at the latest fourteen days as from the date in which EasyPark is informed of the Customer's decision to withdraw from the Agreement.

14.6 EasyPark will reimburse the Customer using the same payment method the Customer used in the initial transaction, unless the Customer has agreed otherwise; in any case, the Customer will not incur in any costs as a consequence of the reimbursement.

14.7 If the Customer wants the performance of Services to begin during the withdrawal period, EasyPark will shall require that the consumer make an express request to that end. EasyPark will also request the Customer to acknowledge that, once the Contract has been fully performed, the Customer will no longer have the right of withdrawal.

14.8 If the Customer has expressly consented to the performance of the Services to begin during the withdrawal period, the Customer must pay EasyPark an amount corresponding to the service delivered by EasyPark until the time the Customer has informed EasyPark of its withdrawal. This proportionate amount shall be calculated on the basis of the total price agreed in the Agreement:

14.8.1 Product Packages with monthly fixed fee (EasyPark Go offer): this amount will be pro rata to the services that have been performed until such time the Customer has notified EasyPark of the exercise of the right of withdrawal of the Agreement (i.e., (a) fees per use of Additional Services (where applicable), and (b) a pro rata of the monthly fixed fee paid by the Customer (where applicable));

14.8.2 Product Packages without monthly fixed fees ("Pay-per-use" offers): this amount will correspond to the service provided until the time the Customer has informed EasyPark of its withdrawal from the Agreement (i.e., (a) fees per use of Additional Services (where applicable), and (b) EasyPark's fixed and/ or percentage surcharge to the relevant Parking Fees/Charging Costs (where applicable).

14.8.3 The Customer acknowledges that, as EasyPark's does not provide any parking locations, parking spaces, paid parking, or facilities for charging of electrical vehicles as such (as per article 3.1.1), Parking Fees/Charging Costs (where applicable) will not be reimbursed by EasyPark.

15 Force Majeure

EasyPark shall not be responsible or liable for failure or delay in carrying out the terms of this Agreement resulting from any force majeure event. A force majeure event is any event that is

unforeseeable, irresistible and external to EasyPark, and that prevents the performance of Agreement, in whole or in part, as recognized by French courts.

16 Information, Personal data

16.1 The Customer acknowledges that EasyPark may share information regarding (the Customer's use of) the Services to P-operators and Partners in order to discharge its duties in relation to them. Furthermore, the Customer acknowledges that EasyPark may report any misuse of the Services, illegal activities, fraudulent or inappropriate behaviour and/or suspicions thereof to the police or any other competent authority.

16.2 Personal data is processed and handled in accordance with applicable legislation for the protection of personal data and in accordance with EasyPark's privacy policy: https://legals.easyparksystem.net/FR/privacy/en/privacy_fr_en.pdf.

17 EasyPark in other countries

17.1 EasyPark is part of a group of companies (each an "**EP Company**") who provide services substantially corresponding to the Services provided by EasyPark (the "**EP Services**"), in the countries (exclusive of any country listed as franchise), which are from time to time listed on www.easyparkgroup.com (each an "**EP Country**"). Please visit www.easyparkgroup.com for information on places within an EP Country where the EP Services may be used.

17.2 If the Customer visits another EP Country (*i.e.*, another country than France), the Customer may use the EP Services provided that the Customer agrees to the applicable general terms and conditions of the local EP Company.

17.3 The EP Services are provided by the local EP Company, and when the Customer uses the EP Services it is a customer of the local EP Company. However, when using the EP Services, the Customer makes payment to EasyPark (and not to the local EP Company). The daily exchange rates published by the Swedish Central Bank are used to convert any fee charged in any EP Country to euro.

18 Amendments, assignment, etc.

18.1 EasyPark reserves the right to amend these General Terms and Conditions. In such case, EasyPark shall promptly inform the Customer and make the new version of the General Terms and Conditions available to the Customer, who has a right to reject the amendments through terminating the Agreement with immediate effect. However, should the Customer thereafter continue to use the Services, the Customer shall be deemed to have accepted the amendments.

18.2 The General Terms and Conditions applicable from time to time are available on the Website.

18.3 EasyPark has the right to assign, in full or in part, its rights and/or obligations under the Agreement without the Customer's consent provided that such assignment does not result in a reduction of the rights of the Customer under the Agreement. Furthermore, EasyPark has the right to employ sub-contractors to discharge its duties under the Agreement.

18.4 The Customer may not assign its rights and/or obligation under the Agreement, without EasyPark's written consent.

19 Miscellaneous

19.1 The Agreement constitutes the entire agreement between the Parties regarding the issues, to which the Agreement relates.

19.2 The Parties agree that, should any provision of the Agreement be held invalid or unenforceable, such provision and the other terms and conditions of the Agreement shall apply to the extent allowed.

19.3 These General Terms and Conditions (as well as any other terms and conditions which forms part of the Agreement) are available in several languages out of which the French language version constitutes the original language version. The Parties acknowledge that in case of any discrepancies between this language version and the French language version of the General Terms and Conditions, the French version shall prevail.

19.4 EasyPark is committed to providing its digital services in accordance with applicable accessibility requirements, including those set out in Directive (EU) 2019/882 of the European Parliament and of the Council on the accessibility requirements for products and services (the "European Accessibility Act"), as implemented in relevant national legislation. Further information regarding accessibility, including applicable measures and contact details, is available in our Accessibility Statement published on www.easyparkgroup.com or the local EasyPark website, where applicable.

20 Applicable law and disputes

20.1 The Agreement shall be governed by and construed in accordance with French law.

20.2 Any dispute, controversy or claim arising out of or in connection with the Agreement, or the breach, termination or invalidity thereof, shall primarily be solved by voluntary agreement between the Parties. The Customer can submit a written complaint to EasyPark's customer service wither via email or registered letter with acknowledgment of receipt to the address provided in section 21. Pursuant to the French Consumer Code, the Customer has also the possibility to seek an alternative dispute mechanism for free by bringing the dispute before the consumer ombudsman EasyPark has adhered to:

- by mail, at the following address:
  ANM-CONSO
  2, Rue de Colmar
  94300 Vincennes
- by telephone:+33 1 46 81 20 95; and/or
- online, on ANM-CONSO's website: www.anm-conso.com.

20.3 Without prejudice to the above, if the Parties are not able to reach an agreement, the dispute may be brought by EasyPark before the Civil Court (tribunal judiciaire) of the Customer's current place of residence, or by the Client before the Civil Court (tribunal judiciaire) having territorial jurisdiction in application of the civil proceedings rules, or before the Civil Court (tribunal judiciaire) of the Customer's place of residence at the time of the execution of this Agreement or at the time the damage was sustained, as provided by applicable law.

20.4 The Customer may resort to the European Commission's online platform available at the following link: https://wevgate.ec.europa/odr/main/index.cfm?event=main.home.show&Ing=FR.

20.5 This section 20 shall survive the termination of the Agreement.

21 Customer service

EasyPark's customer service answers questions regarding the Agreement and the Services provided by EasyPark during office hours during business days in France.

Telephone number: +33 9 77 55 99 99

Email address: serviceclient@easypark.net

* * *

Cancelling form for Consumers

(If you want to withdraw from the contract, please fill out this form and send it back via mail or e-mail. Use of this model withdrawal form is not compulsory; you can exercise your right of withdrawal in any format, provided it is clearly expressed)

To: EasyPark SAS

2, ter rue du Château 92200 Neuilly sur Seine

serviceclient@easypark.net

I / We hereby inform you that we cancel our agreement for the provision of the services:

_____

Requested on / Received on _____

Name of Customer: _____

Customer's address: _____

Customer's signature: _____ (only if sent by paper)

Date: _____